

6.	Petition of Geringer 2026-01573428	Before the court is the Verified Petition Pursuant to Code of Civil Procedure Section 2035.010 et. seq. filed by petitioner Darin Geringer (Petitioner). As more fully set forth below, the petition is GRANTED. In the petition, Petitioner seeks an order authorizing his medical consultant to conduct an independent physical examination of respondent and potential plaintiff Juan Carlos Amezcua (Respondent) pursuant to a demand a physical examination under Code of Civil Procedure §2033.210 et seq. Code of Civil Procedure second 2035.010 states, "One who expects to be a party . . . may obtain discovery . . . for the purpose of preserving evidence for use in the event an action is subsequently filed." Section 2035.020 states, "The methods available for discovery conducted for the purposes set forth in Section 2035.010 are all of the following: . . . (c) Physical and mental examinations." Section 2035.030 sets forth the procedural requirements as well as the requirements for the verified petition. The court finds Petitioner has complied with Section 2025.030. The court also finds the petition and notice of petition have been properly served as required by Section 2035.040. The court has reviewed the verified petition, the notice of verified petition, and the declaration of Michael Lowell. The court finds the requested discovery may prevent a failure of justice. (Code Civ. Proc., § 2035.050) Although Respondent opposed an ex parte application for a temporary restraining order to prevent him from having back surgery before this petition could be heard, Respondent has not filed any opposition to this petition. In opposing the ex parte, Respondent argued physical examinations such as the one sought by Petitioner may only be obtained after a lawsuit is filed. Respondent is mistaken. As stated above, Section 2035.020 expressly authorizes a physical or mental examination pursuant to the prelawsuit procedures established by Section 2035.010 et seq. Based on the foregoing, the motion is GRANTED. Respondent and potential plaintiff Juan Carlos Amezcua is hereby ORDERED to submit to a physical examination by Petitioner's medical consultant pursuant to a notice served in compliance with Code of Civil Procedure §2032.010, et. seq. Petitioner is ordered to give notice.
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